



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

June 3, 2022

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202008309 regarding Police Officer Jason Kwan, Tax No. 961874
(DADS No. 2022-25764)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter and determined that Police Officer Kwan will receive Training rather than a Schedule "B" Command Discipline.

In this matter, Police Officer Kwan failed to verbally provide his name and shield number when requested to do so by the complainant. However, it should be noted that Police Officer Kwan offered the same individual his business card which would contain his name and shield number. The Police Commissioner acknowledges Police Officer Kwan's obligation to provide his name and shield number verbally when requested, but also deems that because Police Officer Kwan offered the same information to the complainant, albeit in a different format, the penalty should be mitigated.

Additionally, Police Officer Kwan's failure to provide his name and shield number during the same incident should not be treated as wholly separate occurrences for penalty

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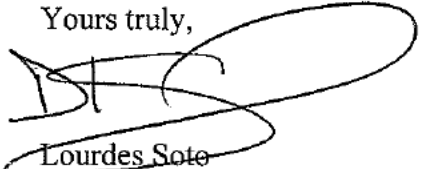
purposes. Rather, the Police Commissioner has determined that, in the interest of maintaining a balance between punishment, deterrence and remediation, the penalties for both allegations should run concurrently, as allowed for under the Disciplinary System Penalty Guidelines.

In determining an appropriate disciplinary penalty, the Police Commissioner reviewed the facts of this matter, along with Police Officer Kwan's lack of disciplinary history. After careful consideration, the Police Commissioner believes that Police Officer Kwan would benefit from training, rather than formalized discipline.

Therefore, based on the foregoing, the Police Commissioner has determined that Police Officer Kwan will receive Training, which is the mitigated penalty under the Disciplinary System Penalty Guidelines.

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,


Lourdes Soto
Inspector
Commanding Officer
Police Commissioner's Office